

STATE OF NEW YORK

7802--A

2025-2026 Regular Sessions

IN SENATE

May 9, 2025

Introduced by Sen. HARCKHAM -- read twice and ordered printed, and when printed to be committed to the Committee on Transportation -- recommitted to the Committee on Transportation in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law, in relation to owner liability for failure of operator to comply with certain posted maximum speed limits in the town of Yorktown, Westchester county; and to amend the general municipal law, in relation to making technical corrections

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as "Jake's Law".
2 § 2. Paragraph 1 of subdivision (a) of section 1180-e of the vehicle
3 and traffic law, as amended by section 1 of part G of chapter 58 of the
4 laws of 2026, is amended to read as follows:
5 1. (a) Notwithstanding any other provision of law, the commissioner of
6 transportation is hereby authorized to establish a demonstration program
7 imposing monetary liability on the owner of a vehicle for failure of an
8 operator thereof to comply with posted maximum speed limits in a highway
9 construction or maintenance work area located on a highway (i) when
10 highway construction or maintenance work is occurring and a work area
11 speed limit is in effect as provided in paragraph two of subdivision (d)
12 or subdivision (f) of section eleven hundred eighty of this article or
13 (ii) when highway construction or maintenance work is occurring and
14 other speed limits are in effect as provided in subdivision (b) or (g)
15 or paragraph one of subdivision (d) of section eleven hundred eighty of
16 this article. Such demonstration program shall empower the commissioner
17 to install photo speed violation monitoring systems within no more than
18 forty highway construction or maintenance work areas located on highways
19 and to operate such systems within such work areas (iii) when highway

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 construction or maintenance work is occurring and a work area speed
2 limit is in effect as provided in paragraph two of subdivision (d) or
3 subdivision (f) of section eleven hundred eighty of this article or (iv)
4 when highway construction or maintenance work is occurring and other
5 speed limits are in effect as provided in subdivision (b) or (g) or
6 paragraph one of subdivision (d) of section eleven hundred eighty of
7 this article. The commissioner, in consultation with the superintendent
8 of the division of state police, shall determine the location of the
9 highway construction or maintenance work areas located on a highway in
10 which to install and operate photo speed violation monitoring systems.
11 In selecting a highway construction or maintenance work area in which to
12 install and operate a photo speed violation monitoring system, the
13 commissioner shall consider criteria including, but not limited to, the
14 speed data, crash history, and roadway geometry applicable to such high-
15 way construction or maintenance work area. A photo speed violation moni-
16 toring system shall not be installed or operated on a highway exit ramp.

17 (b) Provided that, in addition to the highways that the commissioner
18 is authorized to operate the program on pursuant to subparagraph (a) of
19 this paragraph, the commissioner of transportation is hereby authorized
20 and empowered to impose monetary liability on the owner of a vehicle for
21 failure of an operator thereof to comply with maximum posted speed
22 limits in a highway construction or maintenance work area located on a
23 highway in the town of Yorktown in Westchester county (i) when highway
24 construction or maintenance work is occurring and a work area speed
25 limit is in effect as provided in paragraph two of subdivision (d) or
26 subdivision (f) of section eleven hundred eighty of this article or (ii)
27 when highway construction or maintenance work is occurring and
28 other speed limits are in effect as provided in subdivision (b) or (g)
29 or paragraph one of subdivision (d) of section eleven hundred eighty
30 of this article, upon approval in writing obtained by the commissioner
31 from the town, provided that the town may at any time rescind or modify
32 such approval.

33 § 3. Section 371-a of the general municipal law, as amended by section
34 10 of part N of chapter 58 of the laws of 2025, is amended to read as
35 follows:

36 § 371-a. Additional jurisdiction and procedure related to the adjudi-
37 cation of certain notices of liability. A traffic violations bureau
38 established pursuant to subdivision one and a traffic and parking
39 violations agency established pursuant to subdivision two of section
40 three hundred seventy-one of this article may be authorized to adjudi-
41 cate, in accordance with the provisions of this article, the liability
42 of owners: (a) for violations of subdivision (d) of section eleven
43 hundred eleven of the vehicle and traffic law imposed pursuant to a
44 local law or ordinance imposing monetary liability on the owner of a
45 vehicle for failure of an operator thereof to comply with traffic-con-
46 trol indications through the installation and operation of traffic-con-
47 trol signal photo violation-monitoring systems, in accordance with arti-
48 cle twenty-four of the vehicle and traffic law; or (b) for violations of
49 section eleven hundred seventy-four of the vehicle and traffic law when
50 meeting a school bus marked and equipped as provided in subdivisions
51 twenty and twenty-one-c of section three hundred seventy-five of the
52 vehicle and traffic law imposed pursuant to a local law or ordinance
53 imposing monetary liability on the owner of a vehicle for failure of an
54 operator thereof to comply with school bus red visual signals through
55 the installation and operation of school bus photo violation monitoring
56 systems, in accordance with article twenty-nine of the vehicle and traf-

1 fic law; or (c) for violations of subdivision (b), (d), (f) or (g) of
2 section eleven hundred eighty of the vehicle and traffic law imposed
3 pursuant to a demonstration program imposing monetary liability on the
4 owner of a vehicle for failure of an operator thereof to comply with
5 such posted maximum speed limits within a [highway] construction or
6 maintenance work area through the installation and operation of photo
7 speed violation monitoring systems, in accordance with article thirty of
8 this chapter; or (d) for violations of section three hundred eighty-five
9 of the vehicle and traffic law and the rules of the applicable covered
10 agency or covered authority as such terms are defined in article ten of
11 the vehicle and traffic law in relation to gross vehicle weight and/or
12 axle weight violations imposed pursuant to a weigh in motion demon-
13 stration program imposing monetary liability on the owner of a vehicle
14 for failure of an operator thereof to comply with such gross vehicle
15 weight and/or axle weight restrictions through the installation and
16 operation of weigh in motion violation monitoring systems, in accordance
17 with article ten of the vehicle and traffic law.

18 § 4. The town of Yorktown and the commissioner of transportation are
19 hereby authorized and empowered to install signage giving advance notice
20 to motor vehicle operators of the presence of photo speed violation
21 monitoring systems operated pursuant to a demonstration program author-
22 ized by article thirty of the vehicle and traffic law, in conformance
23 with standards established in the manual on uniform traffic control
24 devices maintained by the commissioner of transportation pursuant to
25 section sixteen hundred eighty of the vehicle and traffic law. The town
26 of Yorktown is additionally authorized to design and implement a public
27 information campaign before photo speed violation monitoring systems
28 authorized pursuant to the provisions of section eleven hundred eighty-e
29 of the vehicle and traffic law, as amended by section two of this act,
30 go into operation, to notify and educate motor vehicle operators about
31 such demonstration program.

32 § 5. This act shall take effect on the ninetieth day after it shall
33 have become a law; provided that the amendments to section 1180-e of the
34 vehicle and traffic law made by section two of this act shall not affect
35 the repeal of such section and shall be deemed repealed therewith.